

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD. ,

RESPONDENT.

**JOINT STATUS REPORT AND
PROPOSED DISCOVERY SCHEDULE**

Pursuant to 46 C.F.R. §502.141(h), the June 11, 2024 Initial Order, and the Order Partially Granting Motion to Dismiss, Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, HMM Co., Ltd. f/k/a Hyundai Merchant Marine Co., Ltd. (“HMM”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule.

Initial Disclosures. The Parties have made their Initial Disclosures.

CADRS. The Parties have not consulted with CADRS at this time and submit that it will be more beneficial to do so after the briefing is completed on SEA’s motion to dismiss the counterclaim filed by HMM concomitant with its amended answer to the amended complaint. The

Parties request they be permitted to meet with CADRS within 15 days of the completion of the counterclaim briefing.

Discovery Schedule. The Parties submit the following proposed discovery schedule.

Event	Deadline
Service of Requests for Production and Fact Interrogatories	May 20, 2025
Complete Document Production	July 9, 2025
Complete Fact Depositions	August 11, 2025
Expert Discovery Phase Begins	August 12, 2025
Completion of All Discovery	September 12, 2025

The above schedule complies with completing discovery within the 150-day statutory limit, as further supported in the Initial Order. However, the Parties provide the following observations as to the feasibility of supporting a proper record for the Presiding Officer, let alone the Commission, within the standard, statutory period.

The Parties anticipate that the proposed 150-day discovery schedule in accordance with 46 CFR 502.141(g), as outlined above, will not provide the Parties with sufficient time to complete discovery. More specifically, the Parties are concerned that, in light of the substantial volumes of data and information that are available in electronically-stored information (ESI) and the potential number of custodians whose data must be searched, the Parties are likely to require additional time to undertake a fulsome review of ESI and to produce same. The Parties also anticipate that volume of the allegations, which include over 96,000 allegedly improper charges, will give rise to delays in completing discovery.

Furthermore, the discovery process is likely to be significantly hampered by the necessity of collecting and translating documents prior to or after production as the Parties agree. Moreover, the Parties anticipate that depositions may be undertaken either overseas or on a schedule that

permits witnesses and counsel to conduct depositions in more than one session per witness in light of time differences between Korea and the US East Coast.

Notwithstanding the concerns outlined above, the Parties have proposed a schedule in compliance with the Commission's rules and will undertake discovery efforts in light of achieving same. Finally, the Parties propose that a further status update be provided to the Presiding Officer no later than June 20th to advise the status of discovery.

Dated: April 29, 2025

Respectfully Submitted,

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